

25SMCV03817 25SMCV03817

County: los-angeles

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TENTATIVE

RULING

DEPARTMENT

207

HEARING DATE

July

21, 2026

CASE NUMBER

25SMCV03817

MOTION

Motion

for Leave to Amend Complaint

MOVING PARTY

Plaintiff

Andra Watts

OPPOSING PARTIES

(1)

Defendant Victor Liu, M.D.

(2)

Defendant Elliot B. Lander, M.D.

MOTION

This case arises from allegations of professional negligence.

On July 25, 2025, Plaintiff Andra Watts ("Plaintiff") brought suit against Defendants Elliot Lander, M.D. ("Lander")^[1] and Victor Liu, M.D. ("Liu") (together, "Defendants") alleging three causes of action for (1) medical malpractice; (2) fraud and misrepresentation; and (3) general negligence.

On November 12, 2025, the Court sustained Defendants' demurrers to the third cause of action as encompassed within the first cause of action and granted Defendants' motions to strike punitive damages allegations without prejudice on the ground that Plaintiff had not obtained an order from the Court permitting a claim of punitive damages to be asserted pursuant to Code of Civil Procedure section 425.13, subdivision (a).

On January 7, 2026, the Court denied Plaintiff's first motion for leave to amend the complaint to allege punitive damages without prejudice, finding Defendants had proffered a plausible explanation for discrepancies in Plaintiff's patient record, and therefore Plaintiff had not demonstrated a substantial probability that he would prevail on a punitive damages claim.

Plaintiff has now filed an amended notice of motion and motion for leave to amend the Complaint to allege punitive damages. Liu and Lander have each filed separate oppositions, to which Plaintiff has filed separate replies.

LEGAL

STANDARDS

In any action for damages arising out of the professional negligence of a health care provider, no claim for punitive damages shall be included in a complaint or other pleading unless the court enters an order allowing an amended pleading that includes a claim for punitive

damages to be filed. The court may allow the filing of an amended pleading claiming punitive damages on a motion by the party seeking the amended pleading and on the basis of the supporting and opposing affidavits presented that the plaintiff has established that there is a substantial probability that the plaintiff will prevail on the claim pursuant to Section 3294 of the Civil Code. The court shall not grant a motion allowing the filing of an amended pleading that includes a claim for punitive damages if the motion for such an order is not filed within two years after the complaint or initial pleading is filed or not less than nine months before the date the matter is first set for trial, whichever is earlier.

(Code Civ. Proc.,

§ 425.13, subd. (a).) Per Civil

Code section 3294, to recover punitive damages, a defendant must be guilty of oppression, fraud, or malice. (Civ.

Code, § 3294, subd. (a).) As set forth

in the Civil Code,

(1) "Malice" means conduct which is intended

by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others. (2)

"Oppression" means despicable conduct that subjects a person to cruel and

unjust hardship in conscious disregard of that person's rights. (3) "Fraud" means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.

(Civ.

Code, § 3294, subd. (c)(1)-(3), emphasis added.)

"Section 425.13 was enacted because the Legislature was concerned that unsubstantiated claims for punitive damages were being included in complaints against health care providers. The Legislature therefore sought to provide additional protection by establishing a pretrial hearing mechanism by which the court would determine whether an action for punitive damages could proceed. This pretrial hearing mechanism must be used if plaintiff's claim is for damages arising out of the professional negligence of a health care provider. An action for damages arises out of the professional negligence of a health care provider if the injury for which damages are sought is directly related to

the professional services provided by the health care provider. Thus if a claim is directly related to the professional services rendered by a health care provider, section 425.13 applies." (Cooper v. Superior Court (1997) 56 Cal.App.4th 744, 748 [cleaned up].)

In the seminal case of Central Pathology Service Medical Clinic, Inc. v. Superior Court, the California Supreme Court, in reversing a trial court, held that "[w]hen an injured party seeks punitive damages for an injury that is directly related to the professional services provided by a health care provider acting in its capacity as such, then the action is one 'arising out of the professional negligence of a health care provider,' and the party must comply with section 425.13(a)." (Central Pathology Service Medical Clinic, Inc. v. Superior Court (1992) 3 Cal.4th 181, 191–192 (hereafter Central Pathology) [cleaned up].) The Central Pathology court further stated:

[I]dentifying a cause of action as an "intentional tort" as opposed to "negligence" does not itself remove the claim from the requirements of section 425.13(a). The allegations that identify the nature and cause of a plaintiff's injury must be examined to determine whether each is directly related to the manner in which professional services were provided. Thus, a cause of action against a health care provider for battery predicated on treatment exceeding or different from that to which a plaintiff consented is governed by section 425.13 because the injury arose out of the manner in which professional services are provided. By contrast, a cause of action against a health care provider for sexual battery would not, in most instances, fall within the statute because the defendant's conduct would not be directly related to the manner in which professional services were rendered. And, contrary to plaintiffs' argument, section 425.13(a) applies regardless of whether the complaint purports to state a single cause of action for an intentional tort or also states a cause of action for professional negligence. The clear intent of the Legislature is that any claim for punitive damages in an action against a health care provider be subject to the statute if the injury that is the basis for the claim was caused by conduct that was directly related to the rendition of professional services.

(Central Pathology, supra, 3 Cal.4th at p. 192, emphasis added [cleaned up].) "Thus a claim of battery predicated on treatment exceeding or different from that to which a plaintiff consented is

governed by section 425.13, a claim of fraud in communication of test results is covered, a claim of intentional infliction of emotional distress arising from the rendition of professional services is covered, a claim of falsification of medical findings and conspiracy to deprive a patient of workers' compensation benefits is covered, and a claim that a hospital allowed two hospital employees to rape a patient is covered." (Cooper v. Superior Court, supra, 56 Cal.App.4th at p. 749 [cleaned up]; see also Divino Plastic Surgery, Inc. v. Superior Court (2022) 78 Cal.App.5th 972, 985 [Section 425.13 applies to intentional misrepresentation and promissory fraud counts].)

DISCUSSION

As discussed in the Court's previous ruling on Plaintiff's first motion for leave to amend, Plaintiff's request for punitive damages is premised solely upon Defendants' purported falsification of Plaintiff's patient records.

The Court previously found that Dr. Liu adequately explained the differing versions of the handwritten notes regarding Plaintiff's August 2 visit. "Essentially, one version as written by one doctor, and the other version written by the other doctor." (Minute Order, January 7, 2026.)

Plaintiff now argues that on May 6, 2026, a new version of Plaintiff's chart records containing a handwritten notation of "March 2023" were produced that was previously produced without that handwritten "March 2023" notation.

A review of the records in question demonstrates that the records always indicated that the patient "had filler March 23" but in the new version there is an additional handwritten notation of "—March 2023" next to that statement. In opposition, Dr. Liu explains:

4. On July 29, 2024, I initially had a FaceTime consultation with the Plaintiff, Andra Watts. Elliot Lander, M.D. also attended by FaceTime. By history, Mr. Watts stated that he previously had a circumcision. He also stated he had filler for penile augmentation in March of 2023 by Dr. Moghadam. Mr. Watts stated that his penile length was 6 inches and

the girth was 4-1/2 inches when fully erected. During the consult he expressed he wanted mostly increased penile length and wanted it to look natural. He also stated that when he had an erection his penis would turn to the left at the tip. He stated his penis was not like this prior to the filler injections by Dr. Moghadam.

5. For the consultation on July 29, 2024, I prepared some handwritten notes regarding the consultation on July 29, 2024. Based on the history I obtained from the plaintiff I wrote "had filler March 23" as part of my notes. A true and correct copy of my chart note is attached hereto as Exhibit A with this notation highlighted. After I prepared these handwritten notes these notes were sent to Dr. Lander for his office chart on the patient Mr. Watts.

6. On August 2, 2024, I performed another consultation via Zoom on this occasion with Mr. Watts and Dr. Lander. At that time we discussed the different options for treatment. It was explained to Mr. Watts that to make the shaft more even we could either remove some of the existing fillers or alternatively add fillers to the depressed areas. Mr. Watts stated he did not want fillers removed because he was concerned that the penis would become too small and therefore he preferred more injections to even things out and get the shaft bigger.

7. In my handwritten note for August 2, 2024, I did note that we had discussed the options. I also noted that Mr. Watts had a few nodules that were slightly tender but did not bother him. Again he was stating that he wanted a longer and thicker penis and I noted that we would do a ligament release and filler injection at 20-30 cc. My August 2, 2024 handwritten note is written under my July 29, 2024 note. (A true and correct copy is attached hereto as Exhibit A)

8. My chart also contains a note written by Dr. Lander that is also dated August 2, 2024. Dr. Lander wrote this note on the same page that I had previously sent to him on July 29, 2024 that contained my handwritten consult note of that same date, July 29, 2024. (A true and correct copy is attached as Exhibit B). After Dr. Lander completed his written notes for August 2, 2024 a copy was sent for my chart regarding Mr. Watts so as to include Dr. Lander's chart notes with my chart notes.

9. The surgery was performed on August 9, 2024.

(Attached hereto as Exhibit C is a true and correct copy of my operative report for the detachment of adhesions and division of the suspensory ligament of Mr. Watts' penis as well as injection of fillers.) Either prior to the surgery on August 9, 2024 at the Surgery Center, I reviewed Mr. Watts' chart notes present at the Surgery Center on that date or sometime when I was present at Dr. Lander's office for an office visit regarding the patient, in reviewing the chart maintained at Dr. Lander's office pertaining to my notes for the initial office visit of July 29, 2024 I made the handwritten "March 23" notation to reflect again that is when Mr. Watts previously stated he had the previous filler placed. I believe I made the note at that time again to reflect the history Mr. Watts provided. This was not any new information as this same information was as previously stated was included in my initial consult note of July 29, 2024. The note that contains this second reference to the history of the "March 23" filler placement was made on the notes maintained by Dr. Lander's office that I previously provided to Dr. Lander, which is why I did not previously produce the note from my office chart that I maintained in my office as I did not have the note because it was maintained by Dr. Lander's office.

(Liu
Decl. ¶¶ 4-9.)

Thus, again, Dr. Liu has adequately explained the discrepancy between the two versions of the notes, which was that upon a subsequent review of the notes in anticipation of a follow-up appointment with Plaintiff, Dr. Liu reiterated in the notes that Plaintiff previously received injections from Dr. Moghadam in March of 2023. Thus, the discrepancy is adequately explained, and there was no material change or apparent concealment.

CONCLUSION AND ORDER

The newly-produced chart notation does not alter the Court's prior analysis, that these records do not support a finding that Plaintiff has a substantial probability of prevailing on a claim for punitive damages. Therefore, finding Plaintiff has not met his burden to demonstrate a substantial probability of prevailing on a claim for punitive damages, the Court denies Plaintiff's motion for leave to amend the complaint without prejudice.

Plaintiff shall provide notice of
the Court's ruling and file the notice with a proof of service forthwith.

DATED: July 21, 2026 ____/s/____

Michael
E. Whitaker

Judge
of the Superior Court

[1] The Court notes that Elliot Lander's last name is
spelled "Lender" in the complaint caption. The Court will use spelling as
alleged in the body of the complaint which is "Lander."